

7. 9:00 AM CASE NUMBER: L25-01668

CASE NAME: FARIBORZ GHORBAN VS. VICTOR OSORIA

*HEARING ON MOTION IN RE: TO CORRECT CASE CLASSIFICATION FROM LIMITED TO UNLIMITED
(CONTINUED FROM 1/27/26)

FILED BY: GHORBAN , FARIBORZ

TENTATIVE RULING:

Background

Plaintiff filed this Motion on 11/4/25, and it was originally scheduled for 1/27/26. However, the court continued the Motion to 3/17/26, because Plaintiff had not served Defendant with notice of the Motion.

As of this writing, Plaintiff still has not served Defendant with notice of the Motion.

This will not be continued again. Plaintiff can refile if they choose.

Disposition

Motion will be dropped from the calendar.

8. 9:00 AM CASE NUMBER: L25-03569

CASE NAME: WELLS FARGO BANK, NA VS. EHSANUDDIN NAEBKHIL

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served on counsel for Defendant. The Motion is unopposed.

On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All but the final request for admission were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., §

7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Written Contract and Breach of Contract (Implied in Fact). Plaintiff alleges that Defendant became indebted in the amount of \$15,363.44, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 11/10/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the contract with the Plaintiff, and to admit the subject debt and the amount owing, \$15,363.44.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

9. 9:00 AM CASE NUMBER: L25-04407

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. EMERSON ALVARADO

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED 12/30/25**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

JP Morgan Chase v. Emerson Alvarado